



RPF Disciplined for Failing to Follow Government Order and Ensure Appropriate First Nation Referrals

Gordon Chipman, RPF, consented to a disciplinary decision by the Forest Professionals British Columbia (FPBC) Investigation Committee after admitting to a failure to uphold ethical and professional conduct standards under the former Foresters Act.

Procedural Background

An investigation determined that Chipman did not ensure that two fuel management site plans he approved were consistent with the Government Action Regulation Order U-5-002, nor did he obtain the require exemption prior to harvest. These circumstances arose due to a mistaken belief that the work fell under a pre-existing blanket exemption. The investigation also found that he inadvertently failed to ensure that appropriate referrals to the Stswecem'c Xget'tem First Nations were carried out by the registered professionals under his supervision.

Consent and Terms

Chipman consented to the terms of the order, which includes the issuance of a written reprimand, as well as a requirement to complete the Forest Professionals BC e-course Code of Ethical and Professional Conduct, and the University of Fraser Valley e-course Fundamentals of Records Management (RM01).

CONSENT ORDER

This consent order is made by the investigation committee pursuant to an agreement reached with the respondent under section 74(2) of the *Professional Governance Act*.

Between

Association of BC Forest Professionals

("ABCFP")

And

Gordon CHIPMAN, RPF #3033

("CHIPMAN")

Background

1. CHIPMAN has been licensed as a Registered Professional Forester ("RPF") in good standing since 1995.
2. ESK'ETEMC FIRST NATION (EFN) is the holder of First Nation Woodland Licence (FNWL) N2K and Community Forest Agreement (CFA) K1C.
3. EFN owns Alkali Resource Management Ltd. (ARM). ARM manages FNWL N2K and CFA K1C for EFN, including timber harvesting activities.
4. In 2018, CHIPMAN was the forest manager of ARM, a position he had held since 2010. In 2018, CHIPMAN signed the Forest Stewardship Plan (FSP) for FNWL N2K as the licensee representative for EFN.
5. In January 2019, ARM carried out salvage timber harvesting under FNWL N2K Cutting Permit (CP) 19 and CFA K1C CP 94 on stands impacted by wildfire 2018 near Williams Lake. At the time that ARM carried out this harvesting, CHIPMAN and

ARM mistakenly believed ARM was operating under a pre-existing blanket exemption permitting salvage operations on wildfire impacted areas in Mule Deer Winter Range (MDWR). However, that exemption did not apply. Because the harvesting of CP 19 and CP 94 was carried out without a valid exemption from the General Wildlife Measures (GWM) for Mule Deer Winter Range (MDWR), it was contrary to the requirements of Government Action Regulation Order U-5-002 and section 69 of the Forest Planning and Practices Regulation (FPPR).

6. Portions of FNWL N2K and CFA K1C are within the asserted territory of the Stswecem'c Xget'tem First Nation (SXFN).
7. Between 2017 and 2018, EFN and ARM did not refer certain proposed harvesting and road building activities to SXFN as required under section 4.8.3 of ARM's FSP, contrary to FRPA section 21(1). This oversight was inadvertent as the harvesting and road building activities in question were referred to other nations whose asserted territories overlapped with the proposed operations.
8. In December 2019, a complaint was submitted to the Ministry of Forest Compliance and Enforcement Branch (CEB) regarding, among other things, ARM's failure to consult with the SXFN whose asserted Traditional Territories overlap with CFA K1C.
9. CEB investigated the matter, and an opportunity to be heard was conducted. A MOF statutory decision maker determined that EFN had contravened: (a) FRPA section 21(1) for failing to refer K1C CP 98 to one of three potentially affected First Nations; and (b) FPPR section 69 for failing to obtain an exemption prior to carrying out salvage operations on N2K CP 19 and K1C CP 94. Other alleged contraventions of s. 52 of FRPA were dismissed. No penalty was imposed.
10. In February 2021, the *Professional Governance Act* replaced the *Foresters Act*, and the Investigation Committee assumed the statutory authority of the Complaints Resolution Committee under the revised bylaws of the ABCFP.
11. On March 9, 2022, the ABCFP received a complaint (the "Complaint") against CHIPMAN related to the failure to provide referrals and consultation with SXFN in

relation to ARM's timber harvesting activities. In addition, the complaint advanced concerns that CHIPMAN was responsible for inappropriate or unauthorized timber harvesting of Mule Deer Winter Range (MDWR) contrary to the U-5-002 Order and Old Growth Management Areas (OGMAs).

12. On May 24, 2022, the ABCFP Investigation Committee authorized an investigation into the Complaint.
13. The investigation found that CHIPMAN signed two Site Plans (SPs) for Fuel Management treatments which did not include references or referrals to the SXFN.
14. The investigation found that CHIPMAN signed two SPs for Fuel Management treatments in areas that overlap, in whole or in part, with MDWR and did not obtain an exemption from the GWM applicable to MDWR, contrary to the requirements outlined in the U-5-002 Order.
15. Following the investigation, the investigator panel issued an investigation report for the Investigation Committee's review and consideration, and CHIPMAN was given an opportunity to respond to it.
16. On September 25, 2023, the Investigation Committee reviewed the investigation report and CHIPMAN's response and concluded he had contravened the Code of Ethics in ABCFP's former Bylaws 11.3.3, 11.5.1 and 12.5.1 under the *Foresters Act*.¹

¹ Former bylaws repeated here for convenience. Now covered by FPBC bylaw 9.

11.3.3 To have regard for existing legislation, regulation, policy and common law; and to seek to balance the health and sustainability of forests, forest lands, forest resources, and forest ecosystems with the needs of those who derive benefits from, rely on, have ownership of, have rights to, and interact with them.

11.5.1 To act conscientiously and diligently in providing professional services.

12.5.1 Members exercise due diligence by being prudent and doing all work with constant and careful attention.

Admissions

17. CHIPMAN admits that:

- (a) He signed two SPs for fuel management treatments that were inconsistent with U-5-002 GAR Order because, based on a mistaken belief that this work fell under a pre-existing blanket exemption as discussed at paragraph 5 above, he did not obtain the required exemption from the GWM applicable to MDWR prior to harvest resulting in a contravention of former Bylaw 11.3.3.
- (b) In the course of completing or overseeing the completion of SPs for certain fuel management treatments in areas that overlap with the asserted traditional territories of the SXFN, among other First Nations, he inadvertently failed to ensure appropriate referrals to the SXFN were carried out by the registered professionals under his supervision, thereby contravening former Bylaws 11.5.1 and 12.5.1.

Disposition

18. Pursuant to s. 73(2)(b) of the *Professional Governance Act*, and at the request of the Investigation Committee, CHIPMAN :

- (a) consents to a reprimand under section 72(1)(c) of the *Professional Governance Act*;
- (b) undertakes to complete ABCFP Code to Ethics and Professional Conduct training by no later than December 31, 2026; and
- (c) consents and undertakes to complete the University of the Fraser Valley's course on Fundamentals of Records Management (RM01) or an alternative course acceptable to the Audit and Practice Review Committee, under section 75(6)(f) of the *Professional Governance Act* by December 31, 2026.

19. CHIPMAN acknowledges that the consent and undertakings he has given in this consent agreement have the same effect as an order made by a panel of the

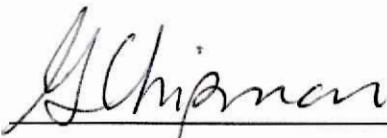
Discipline Committee of the ABCFP after a hearing conducted under section 75 of the *Professional Governance Act*.

20. CHIPMAN acknowledges that the ABCFP is required under ABCFP Bylaw 13-6(1) to notify the public of this agreement by publishing a notice in the discipline digest section of the ABCFP's website and in its newsletter, or other public communications that will contain a summary of the circumstances of this case, including the full text or summary of this order.
21. CHIPMAN acknowledges that he has read this consent agreement, fully understands its terms, and has voluntarily accepted it for the purpose of fully and finally resolving all matters arising out of or related to the Complaint.
22. CHIPMAN understands that he has the right to seek independent legal advice and has been encouraged to seek such advice before signing this consent agreement.

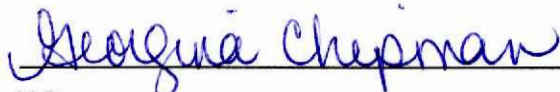
This consent order is made pursuant to an agreement reached between the Investigation Committee and CHIPMAN under s. 74(2) of the *Professional Governance Act* and is accepted by CHIPMAN effective this 11 day of Feb, 2026.



Bruce Blackwell, RPF
Chair, Investigation Committee



Gordon CHIPMAN, RPF #3033



Witness